

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 847

BY APPROPRIATIONS COMMITTEE

AN ACT

RELATING TO THE APPROPRIATION TO THE JUDICIAL BRANCH; APPROPRIATING MONEYS TO THE JUDICIAL BRANCH FOR FISCAL YEAR 2027; EXEMPTING THE APPROPRIATION FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITATIONS; PROVIDING REQUIREMENTS FOR RETIREMENT CONTRIBUTIONS; PROVIDING REAPPROPRIATION AUTHORITY; PROVIDING FOR CONDITIONS, LIMITATIONS, AND RESTRICTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. There is hereby appropriated to the Judicial Branch the following amounts to be expended according to the designated programs and expense classes from the listed funds for the period July 1, 2026, through June 30, 2027:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
I. COURT OPERATIONS:					
A. SUPREME COURT:					
FROM:					
General					
Fund	\$16,635,900	\$1,295,500		\$225,600	\$18,157,000
Miscellaneous Revenue					
Fund		271,000			271,000
Federal Grant					
Fund	<u>440,100</u>	<u>1,419,300</u>		<u>0</u>	<u>1,859,400</u>
TOTAL	\$17,076,000	\$2,985,800		\$225,600	\$20,287,400
B. COURT OF APPEALS:					
FROM:					
General					
Fund	\$2,756,700	\$43,900			\$2,800,600
C. DISTRICT COURTS:					
FROM:					
General					
Fund	\$24,165,200	\$1,102,800			\$25,268,000

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
1					
2					
3					
4					
5	Court Technology				
6	Fund	5,751,300	\$3,348,300		9,099,600
7	Drug Court, Mental Health Court and Family Court Services				
8	Fund	<u>1,930,400</u>	<u>3,368,500</u>	<u>0</u>	<u>5,298,900</u>
9	TOTAL	\$26,095,600	\$10,222,600	\$3,348,300	\$39,666,500
10	D. MAGISTRATE DIVISION:				
11	FROM:				
12	General				
13	Fund	\$23,094,100	\$382,800		\$23,476,900
14	Drug Court, Mental Health Court and Family Court Services				
15	Fund	1,278,600	1,890,700		3,169,300
16	Guardianship Pilot Project				
17	Fund	371,600	66,200		437,800
18	Senior Magistrate Judges				
19	Fund		600,000		600,000
20	Federal Grant				
21	Fund	<u>21,000</u>	<u>90,100</u>		<u>111,100</u>
22	TOTAL	\$24,765,300	\$3,029,800		\$27,795,100
23	E. WATER ADJUDICATION:				
24	FROM:				
25	General				
26	Fund	\$757,500	\$161,900		\$919,400
27	F. COMMUNITY-BASED SUBSTANCE USE TREATMENT SERVICES:				
28	FROM:				
29	Substance Abuse Treatment				
30	Fund	\$264,200	\$434,200	\$4,230,800	\$4,929,200
31	G. SENIOR JUDGES:				
32	FROM:				
33	General				
34	Fund	\$1,181,900			\$1,181,900
35	DIVISION TOTAL	\$72,897,200	\$16,878,200	\$3,348,300	\$97,580,100

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
II. GUARDIAN AD LITEM PROGRAM:					
FROM:					
General					
Fund	\$16,700			\$2,750,800	\$2,767,500
III. JUDICIAL COUNCIL:					
FROM:					
General					
Fund	\$22,500	\$132,500			\$155,000
GRAND TOTAL	\$72,936,400	\$17,010,700	\$3,348,300	\$7,207,200	\$100,502,600

SECTION 2. EXEMPTIONS FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITATIONS. The Judicial Branch is hereby exempted from the provisions of Section 67-3511(1), (2), and (3), Idaho Code, allowing unlimited transfers between expense classes and between programs for all moneys appropriated to it for the period July 1, 2026, through June 30, 2027. Legislative appropriations shall not be transferred from one fund to another fund unless expressly approved by the Legislature.

SECTION 3. RETIREMENT CONTRIBUTIONS. Of the amount appropriated in Section 1 of this act from the General Fund for the state's share of retirement contribution remittances to the Judges' Retirement Fund for justices' and judges' retirement benefits pursuant to Section 1-2004(2), Idaho Code, those amounts that are uncommitted shall be transferred monthly into operating expenditures and then paid by the Judicial Branch into the Judges' Retirement Fund.

SECTION 4. REAPPROPRIATION AUTHORITY. There is hereby reappropriated to the Judicial Branch any unexpended and unencumbered balances appropriated or reappropriated to the Judicial Branch from the American Rescue Plan Act (ARPA) State Fiscal Recovery Fund for fiscal year 2026, in an amount not to exceed \$16,222,200 from the American Rescue Plan Act (ARPA) State Fiscal Recovery Fund, to be used for nonrecurring expenditures for the period July 1, 2026, through June 30, 2027. The Office of the State Controller shall confirm the reappropriation amount, by fund, expense class, and program, with the Legislative Services Office prior to processing the reappropriation authorized herein.

1 SECTION 5. CONDITIONS, LIMITATIONS, AND RESTRICTIONS. Appropriations
2 made pursuant to this act are subject to the conditions, limitations, and re-
3 strictions specified in this act.

4 SECTION 6. An emergency existing therefor, which emergency is hereby
5 declared to exist, this act shall be in full force and effect on and after
6 July 1, 2026.